

Smt. Prema Devi v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 12 July 2023 · 2023:AHC:138415-DB · WRIT - C No. 22000 of 2023 · **Disposed with liberty to file a Clause 6.5 objection within two weeks.**

HEADNOTE

Disputed electricity dues are to be raised by a complaint or objection under Clause 6.5 of the Electricity Supply Code, 2005 before the Executive Engineer. The writ for reconnection and for adjustment of one-time settlement deposits was disposed of, with liberty to file that objection within two weeks. If filed, it is to be heard and decided in accordance with law.

FACTUAL SUMMARY

Smt. Prema Devi's electricity connection (Account I.D. No. 3739725000) had been disconnected. She had deposited money under a one-time settlement scheme dated 15 July 2022 and had made a representation between 9 May and 17 May 2023. She petitioned the Allahabad High Court for a mandamus to Purvanchal Vidyut Vitaran Nigam Ltd., Fatehpur, to restore supply, adjust those deposits, and decide the representation. The dues themselves were in dispute.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed electricity dues — Clause 6.5 complaint

HOLDING

The Electricity Supply Code, 2005 is a self-contained code. Where electricity dues are disputed, the consumer's remedy is a complaint or objection under Clause 6.5 before the Executive Engineer, Purvanchal Vidyut Vitaran Nigam Ltd., Khand (first), Fatehpur. The writ was disposed of with liberty to file that objection within two weeks; if filed, the Executive Engineer shall hear and decide it in accordance with law.

¶ 3-6

PRINCIPLE TAGS

clause-6.5-statutory-remedy-disputed-bill Because the petitioner disputed the electricity dues, the Court held that the remedy is a complaint under Clause 6.5 of the Electricity Supply Code, 2005, and did not examine the bill in the writ. ¶ 5

clause-6.5-alternate-remedy-to-writ The writ for reconnection and adjustment was disposed of with liberty to file a Clause 6.5 objection within two weeks, to be heard and decided in accordance with law. ¶ 6

billing-objection-to-executive-engineer-under-6.5 The appropriate complaint is to be moved before respondent no. 2, the Executive Engineer, Purvanchal Vidyut Vitaran Nigam Ltd., Khand (first), District Fatehpur. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER SUPPLY ON ACCOUNT I.D. NO. 3739725000 MUST BE RESTORED.

Left to the Clause 6.5 forum if an objection is filed. ¶ 2-6

NOT DECIDED — WHETHER SUMS DEPOSITED UNDER THE ONE-TIME SETTLEMENT SCHEME DATED 15.07.2022 ARE TO BE ADJUSTED.

Counsel sought adjustment; the Court gave no direction on it. ¶ 4

NOT DECIDED — THE MERITS OF THE REPRESENTATION DATED 09.05.2023 TO 17.05.2023.

The Court did not direct that representation to be decided, and instead gave liberty to file a Clause 6.5 objection. ¶ 2-6

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.